



Appeal Decision

Site visit made on 11 August 2026

by **C Housden BSc (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 21 September 2026

Appeal Ref: 6004691

Land South of Woodview House, Perry Hill, Cliffe Woods ME3 7TX

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr Peter Lowe against the decision of Medway Council.
 - The application ref is MC/25/1361.
 - The development proposed is permission in principle for the construction of a minimum of one and a maximum of three self-build residential units.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The proposal is for permission in principle. Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing led development. The permission in principle consent route has two stages: the first stage (or permission in principle stage) establishes whether a site is suitable in principle and the second ('technical details consent') stage is when the detailed development proposals are assessed. This appeal relates to the first of these two stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted. All other matters are considered as part of a subsequent Technical Details Consent application if permission in principle is granted. I have determined the appeal accordingly.
4. A new National Planning Policy Framework (the Framework) was published on 17 August 2026. Accordingly, I sought the views of the parties regarding the implications of the new Framework on the appeal. I have taken these submissions into account in reaching my decision.
5. The Council's emerging plan has been referred to within the evidence, with the Council confirming it has completed the public consultation stages. However, it is at an early stage and I have no evidence before me regarding its examination, such as whether any interim findings have been made, if there have been any main modifications and subsequent consultations upon them or if the examining Inspectors have submitted their report. Given the lack of certainty over the final form of the policies in the emerging plan, I can only afford it very limited weight in accordance with Policy DM4 of the Framework.

Main Issue

6. The main issue is the effect of the proposal on the character and appearance of the area.

Reasons

7. The appeal site is situated outside of a defined settlement and within the countryside. The area features extensive open green fields with pleasant long-range views across them. Within the countryside, past the appeal site development is limited to countryside roads and sporadic low-density small clusters of buildings. Looking southwards from the appeal site lies the settlement of Cliffe Woods which provides a clear visual break to the rolling rural fields. Overall, there is a distinctive rural and open identity to the countryside.
8. The appeal site comprises a green field with an open frontage onto Perry Hill, a single carriage countryside road. The site appears as part of the extensive network of rolling open fields, and its verdant and undeveloped nature positively contributes towards the rural and open landscape.
9. The introduction of a residential development would result in a detrimental domestication of the appeal site where its distinct open, rural and undeveloped nature which contributes positively to the character and appearance of the area would be lost. Whilst the countryside features small individual clusters of development, the proposal would result in the encroachment of development along Perry Hill towards Cliffe Woods, diminishing the clearly perceptible undeveloped open gap between the rural development within the countryside, including the adjacent property Woodview house, and the edge of Cliffe Woods. Therefore, the existence of other clusters of development within the wider countryside would not justify the location of the appeal proposal which harshly contrasts with the open fields bounding Cliffe Woods.
10. In addition, the proposal would develop part of the rural space between Cliffe Woods and Cliffe. This would result in physical and visual coalescence between the settlements. However, given the small scale of the proposal it would only be a limited effect in this regard.
11. I understand that a number of previous appeals within the wider blue line area have been dismissed at appeal¹. Unlike the scheme before me, these schemes fronted onto Merryboys Road from the north. Nevertheless, the respective Inspectors in these cases raised concerns regarding the effect on the character and appearance of the area in dismissing the appeals. For the reasons given, the appeal proposal fronting onto Perry Hill would not overcome these concerns.
12. Therefore, whilst the overall design of the development would be determined at the TDC stage, I conclude that a residential development of one to three dwellings at the location of the appeal site would, in principle, result in significant harm to the character and appearance of the area. The development would therefore conflict with Policies S1, S2, BNE1, BNE25(i) and BNE47 of the Medway Local Plan (2003) (LP) and Policy SUSDEV 1 of the Cliffe and Cliffe Woods Neighbourhood Plan (2023) (NP). These policies, amongst other matters seek to ensure development respects the visual amenity of the surrounding area, maintains and

¹ APP/A2280/W/20/3245079, APP/A2280/W/21/3285742 & APP/A2280/W/21/3288801

improves environmental quality and wherever possible enhances the character, amenity and functioning of the countryside. In addition, where a development is served by a rural lane development should ensure that there is no adverse effect upon the value of the lane in terms of its landscape and amenity and to not permit development proposals that would result in the visual or physical merging of Cliffe and Cliffe Woods.

13. The Council has referred to Policy H11 of the LP in its associated reason for refusal. However, I do not consider this policy to be directly relevant to the main issue of character and appearance as this policy relates to the rural settlement spatial strategy. The Council has confirmed that it considers this policy to be inconsistent with the Framework so would carry very limited weight in any case².

Other Considerations

14. Policy S5 of the Framework sets out that only certain forms of development, as set out in the defined list of the policy should be approved outside settlements. In particular paragraph 1(j)(i) of Policy S5 identifies development that would benefit from Policy S5 includes that which would address an evidenced unmet need and where the development would be physically well-related to an existing settlement and be of a scale which can be accommodated taking into account the existing or proposed availability of infrastructure.
15. The evidence before me demonstrates that the Council cannot demonstrate a five-year housing land supply, with the evidence confirming a position of 3.1 years. In addition, the Council only achieved 60% in the most recent Housing Delivery Test results. As such, the first part of paragraph (j) is met. However, as described, the appeal proposal is set away from the defined edge of Cliffe Woods which is visually contained to the other side of Merryboys Road. The development would visually appear away from the settlement and as part of the countryside with an access from Perry Hill, a distinctly rural road. The development would therefore not appear physically well-related to Cliffe Woods and as such would not meet paragraph 1(j)(i) of Policy S5.
16. The appeal site falls within the zone of influence for a designated habitats site. As the competent authority, had I had been minded to allow the appeal following a consideration of the main issue, it would have been necessary to undertake an appropriate assessment. However, as I am dismissing the appeal for other reasons, it is not necessary as the Habitats Regulations indicate that an Appropriate Assessment is only required when the competent authority is minded to grant consent. I therefore do not need to consider this matter further as it does not impact the outcome of the appeal.
17. The Housing and Planning Act (2016) prescribes a statutory duty for the Council to give enough permissions in respect of serviced plots of land to meet the demand for self-build and custom housebuilding arising in each base period. The parties agree that the Council is failing to meet its statutory duty to give enough permissions of serviced plots of land. The evidence of the appellant sets out that the shortfall is between 93 – 109 plots. The Council has not contested these figures, and I see no reason to reach a different conclusion. Given the narrow range in the shortfall, it is not determinative for me to reach a conclusion on the specific number of plots. As insufficient permissions have been granted by the

² Annex A of the Framework

Council to meet demand in accordance with the statutory duty, this is a material consideration in favour of granting permission.

18. My attention has been drawn to a historic appeal at the site for three stable buildings which was allowed at appeal³. However, this previous appeal for single storey stable buildings, which the previous Inspector noted had no associated hard standing, would not be comparable in terms to its effect on the character and appearance of the area to a residential development of one to three dwellings and the associated paraphernalia.
19. A number of allowed appeal decisions have been referred to by the appellant relating to schemes they consider to be comparable to the appeal proposal⁴, including appeals for self-build housing outside of settlements. However, these examples are situated within different physical context to the appeal site where I have identified specific in principle harm owing to the specific location of the site. In addition, as addressed above, the provision of the units as self-build is a matter in favour of granting permission which I account for in my balance below.
20. Major development schemes approved by the Council around Cliffe Woods have also been referred to by the appellant⁵. However, the evidence shows that these are also not directly comparable owing to the differing scales of the proposals. The evidence also demonstrates that these developments are also not within the relative proximity of the appeal site and are set closer to the existing boundary of Cliffe Woods so are also not directly comparable to the appeal proposal in this regard. Each development should be assessed on its individual merits which I have done so, and the existence of these appeal proposals and planning permissions does not mitigate or otherwise justify the harms that I have identified.
21. I note that no objections have been received from neighbours. However, the lack of objections does not equate to a lack of harm.

Planning Obligation

22. A unilateral undertaking (UU) has been submitted which restricts the commencement of development, following the granting of TDC, until details have been submitted to the Council demonstrating how the proposal will be delivered as self-build housing. This would be necessary, relevant and reasonable to ensure the appeal proposal is indeed delivered as a self-build scheme. I am satisfied that the UU has been drafted sufficiently precisely to make the obligations capable of being complied with and enforced. It therefore meets the tests as set out in Policy DM6 of the Framework. I can therefore place significant weight on the obligation.

Planning Balance

23. The proposed development is not in accordance with the aforementioned policies of the LP and NP. Annex A of the Framework sets out development plan policies which are materially inconsistent with national decision-making policies of the Framework should be given very limited weight.
24. In relation to matters of character and appearance, LP Policies S1, S2, BNE1, BNE25 criteria (i) and BNE47 and NP Policy SUSDEV1 are broadly consistent with

³ APP/A2280/A/08/2090410

⁴ APP/A2280/W/21/3266477, APP/R1845/W/21/3284761, APP/T0355/W/22/3309281, APP/T0355/W/23/3314990

⁵ LPA refs MC/23/0531, MC/21/1694 and MC/24/0279

sections 14 and 19 of the Framework, in particular Framework Policy DP3 which seeks to ensure development proposals respond to their context so that they integrate with and enhance their surroundings and Policy N2 which seeks for proposals to contribute positively to the natural environment by considering the landscape character and the natural beauty of the countryside, and identify opportunities for those qualities to be conserved or enhanced. On this basis the conflict with these policies carries significant weight against the development and the proposal would conflict with the development plan as a whole.

25. It has been brought to my attention that LP Policy BNE25 was found to be inconsistent with the Framework by the Inspector in a previous appeal⁶. However, in this case Policy BNE25 was being applied in relation to the location of the development outside of a settlement boundary and the spatial approach of the development plan, rather than matters relating to character and appearance as is the case for this appeal where I have found criteria (i) of the policy to be consistent with the Framework in this regard.
26. The proposal would not meet any of the categories set out in Policy S5 of the Framework. Paragraph 4 advises that such development should only be approved in exceptional circumstances, where the benefits of the proposal would substantially outweigh the adverse effects, including to the character of the countryside.
27. The proposal would provide one to three self-build dwellings. Policy HO7 sets out that substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community, which the scheme would do. It would also lead to a small and time limited economic benefit during the construction phase, as well as some limited social and economic benefits resulting from future occupiers.
28. However, the proposal results in significant harm to the character and appearance of the area. This would result in conflicts with Policy DP3 and N2 of the Framework. Of particular note is paragraph 3 of Policy DP3 which advises that development proposals should be refused if, without clear justification, they conflict with paragraph 1 of the policy, which the development would do so as it would not integrate with and enhance its surroundings.
29. Whilst the provision of one to three self-build dwellings would provide important benefits, particularly given the Council's housing land supply position, Housing Delivery Test result and it not meeting its self-build and custom housing duty, these benefits would not substantially outweigh the significant adverse effects to the character and appearance of the area brought by the development. Exceptional circumstances as required by paragraph 4 of Policy S5 do not exist.

Conclusion

30. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, for the reasons given above, the appeal should be dismissed.

C Housden
INSPECTOR

⁶ APP/A2280/W/21/3288801